

COMMERCIAL LEASE AGREEMENT

I. THE PARTIES. This commercial lease agreement ("Agreement"), dated April 28, 2025, by and between:

LANDLORD: The Landlord is a business entity known as Heryford Investments, LLC whose address is Post Office Box 1722, Murphys, California, 95247, hereinafter known as the "Landlord."

TENANT: The Tenant is a business entity known as Good Karma Wellness whose address is Post Office Box 2662, Murphys, CA 95247 owned by Dana Oneto and Joseph Duckett hereinafter known as "Tenant." The parties agree to the following:

II. OCCUPANT(S). The Premises described in Section III is to be occupied strictly as a commercial property by the Tenant and no other individuals.

III. LEASED PREMISES. Landlord hereby rents to Tenant, subject to the terms and conditions of this Agreement, a 900 square foot building with a property address of 433 E. Highway 4, Murphys, California 95247, consisting of commercial building space, one bathroom and outdoor commercial use space (the "Premises"). The Landlord shall NOT send the Tenant any notices to the Premise's aforesaid mailing address. Instead, the Landlord shall send notices to Good Karma Wellness, Post Office Box 2662, Murphys, California, 95247.

IV. PURPOSE. The Landlord grants the Tenant a limited, revocable, and non-exclusive right to use the premises for the following purposes: Health and wellness activities, including but not limited to yoga, meditation, fitness classes, and wellness-related events; development and maintenance of a deck and smoothie shack in the designed outdoor area, subject to all applicable permits, licenses, zoning codes, health codes and approvals. It may not be used for storage, a residence or manufacturing of any type of food or product, unless otherwise stated in this Agreement.

At the time of signing this lease, Tenant has informed Landlord of a desire to create a "Smoothly Shack." Tenant will notify Landlord of the business plan for the Smoothy Shack within 90 days of opening. Tenant will be required to obtain all state, county and local permits and follow all regulations prior to setting up the Smoothly Shack.

V. FURNISHINGS. The Premises is furnished with counter top spaces and cabinets.

VI. APPLIANCES. The Landlord shall provide the following appliances: Plumbing fixtures (Including Faucets, Fittings, Trims), Smoke Detector(s), Hot Water Heater, HVAC Equipment, Lighting Fixtures, Thermostats and Controls, and a propane tank all of which shall be on the Premises and functional upon the move-in date of the Tenant.

Any damage caused to the Appliances and Fixtures from negligence, carelessness, accidents, or abuse shall NOT be the liability of the Tenant entirely. Any damage to the Appliances and Fixtures shall be assessed in the following manner: Landlord will pay for damages due to normal wear and tear. Tenant will pay for damages due to Tenant's negligence.

VII. LEASE TERM. The term of this Agreement shall be for one year beginning on May 1, 2025. At the end of the one year, Tenant can extend the lease for an additional year. The Landlord or Tenant shall both retain the option to terminate said terms if the Landlord or Tenant notifies the other party within at least thirty (30) days or the minimum notice period authorized by state law, whichever is longer.

VIII. RENT. Tenant shall pay the Landlord a monthly base rent of \$1,500.00. The Rent will be due on the First (1st) of every month, and Rent shall be paid by sending payment to the Landlord's aforementioned mailing address or in person. After the first year of this lease, Tenant will have the option to renew this lease for an additional year with a 5% increase for a total base rent of \$1,575.00.

IX. NON-SUFFICIENT FUNDS (NSF CHECKS). If the Tenant attempts to pay Rent with a check, electronic transaction, or through any other means authorized by this Agreement, that fails to clear the transaction of Rent funds due to non-sufficient funds ("NSF"), there shall be a \$35.00 fee.

X. LATE FEE. If the Tenant fails to pay rent, there shall be a late fee assessed by the Landlord in the amount of 5% of the outstanding balance for each rent payment that is late after the 11th day following the Rent Due Date.

XI. FIRST (1ST) MONTH'S RENT. First (1st) month's Rent payment shall be due by the Tenant upon the start of the Lease Term, May 1, 2025.

XII. PRE-PAYMENT. The Landlord shall not require any pre-payment of Rent by the Tenant.

XIII. PRORATION PERIOD. The Tenant will not move into the Premises before the start of the Lease Term.

XIV. SECURITY DEPOSIT. A security deposit in the amount of \$1,000.00 shall be required from the Tenant at the execution of this Agreement for the faithful performance of all its terms and conditions. The Security Deposit shall be returned to the Tenant within 21 days after this Agreement has terminated. The Security Deposit shall be returned in the manner prescribed in Section 1950.5 of the California Civil Code upon the end or termination of the Lease Term, including any refunds for the remaining balance in the event the Landlord intends to impose a claim on the Security Deposit for any damages, in which case the Landlord shall furnish unto the Tenant an itemized statement indicating the basis for said claims within the same number of days hereof and as otherwise required in Section 1950.5 and by any local ordinances. The Security Deposit shall not be credited towards Rent unless the Tenant gives their written consent.

XV. POSSESSION. The Tenant shall make reasonable efforts to examine the condition of the Premises before taking possession. Once the Tenant take possession of the Premises, the Tenant acknowledges the Premises is in acceptable order and consents to take possession of the Premises in its

current condition unless otherwise stated herein. Failure of the Landlord to deliver possession of the Premises to the Tenant at the start of the Lease Term shall terminate this Agreement at the option of the Tenant. Furthermore, under such failure to deliver possession by the Landlord, and if the Tenant opts to

cancel this Agreement, any Security Deposit required under Section XIV of this Agreement shall be returned to the Tenant.

XVI. INSURANCE: The tenant will assume all risk associated with the use of the premises and shall indemnify and hold harmless the Landlord from any claims, damages, injuries or liabilities arising out of the Tenant's use. The tenant must carry liability insurance in an amount no less than \$1,000,000 per occurrence, and provide Landlord with a Certificate of Insurance naming Landlord as additional insured on the policy. Any sublessees shall also provide proof of insurance with the conditions as the Tenant.

XVII. ACCESS. Upon the start of the Lease Term, the Landlord agrees to give access to the Tenant in the form of keys, fobs, cards, or any type of keyless security entry device needed to enter the Premises. If any access devices are lost and duplicates are needed, the Landlord may provide them for a reasonable fee. At the end of this Agreement, any keys, fobs, cards, or keyless entry devices provided to the Tenant shall be returned to the Landlord or a fee will be billed directly to the Tenant or deducted from the Security Deposit.

XVIII. MOVE-IN INSPECTION. Before the Tenant accepts possession as described in Section XV of this Agreement, or shortly thereafter if agreed upon, the Landlord and the Tenant shall perform an inspection documenting the present condition of all Appliances, Fixtures, Furnishings, and any existing damage within the Premises.

XIX. SUBLETTING. The Tenant shall NOT have the right to sublet the Premises or any part thereof without the prior written consent of the Landlord. If consent is granted by the Landlord, the Tenant will be responsible for all actions and liabilities of the sublessee, including but not limited to any damage to the Premises, nonpayment of Rent, and eviction procedures. In the event of an eviction, the Tenant shall be responsible for all court filing fees, legal representation, and any other fees associated with removing the sublessee. The express written consent from the Landlord for one sublet agreement shall not authorize consent for any subsequent sublet agreements, and in such case, the Tenant must seek consent from the Landlord for the subsequent sublet agreement.

XX. ABANDONMENT. If the Tenant abandons or otherwise vacates the Premises for a period equal to the minimum period set by state law or seven (7) days, whichever is less, the Landlord shall have the right to terminate this Agreement immediately and remove all personal belongings, including any personal property of the Tenant, from the Premises in the manner prescribed by state and local laws.

XXI. ASSIGNMENT. The Tenant shall NOT assign or otherwise transfer the commercial lease interest described in this Agreement without first obtaining the written consent of the Landlord. Written consent from the Landlord for one assignment shall not authorize consent for any subsequent assignments, and in such case, Tenant must seek consent from the Landlord for subsequent assignments.

XXII. PARKING. The Landlord shall provide the Tenant parking in front of the commercial building (one handicap and three parking spots). Additional parking is accessible on the right side of the commercial building and along the right front (designated with wood poles and below brick residential wall). Residential Tenant neighboring Tenant's commercial building will from time to time require parking for special events. Tenant will work with the neighboring Tenant to make parking available for any event parking.

XXIII. SIGNAGE: Tenant is responsible for any signage. Nothing will be affixed to the building's roof. Tenant may use the three-post structure on the property near Highway 4 for signage. Tenant will comply with any and all county ordinances or regulations for such signage.

XXIV. RIGHT OF ENTRY. The Landlord shall have the right to enter the Premises during normal working hours by providing notice in accordance with the minimum state and local requirements in order to conduct inspections, make necessary repairs, alterations or improvements, supply services as previously agreed, and for any other reasonable purposes. The Landlord may exhibit the Premises to prospective purchasers, mortgagees, or lessees upon reasonable notice to the Tenant.

XXV. SALE OF PROPERTY. If the Premises is sold, Tenant is to be notified of the new owner and the new property manager, if any, and their contact details for repairs and maintenance shall be forwarded to Tenant. If the Premises is conveyed to another party, the new owner shall not have the right to terminate this Agreement, and it shall continue under the terms and conditions agreed upon by the Landlord and Tenant.

XXVI. UTILITIES. The Tenant agrees to pay the following utilities and services directly: Electrical, propane and trash removal. The Tenant will reimburse the Landlord for water, sewer, and Tenant's share of property taxes and insurance. Landlord will invoice Tenant for these costs monthly.

XXVII. MAINTENANCE, REPAIRS, OR ALTERATIONS. The Tenant at all times shall, at their own expense unless otherwise stated in this Agreement, maintain the Premises in a clean and sanitary manner, and shall surrender the same at termination hereof, in as good condition as received, normal wear and tear excepted. The Tenant may not make any alterations to the Premises without the written consent of the Landlord. The Landlord shall be responsible for structural repairs to defects in the interior and exterior of the Premises. The Landlord shall be responsible for repairs and maintenance to Appliances and Fixtures caused by normal wear and tear, which occurs naturally and not through negligence, accidents, or abuse of the Tenant, Occupant, or any Guest.

XXVIII. PETS. The Tenant shall not house pets on the Premises or common areas. Pets are allowed during normal business hours.

XXVIX. WASTE. The Tenant agrees not to commit waste on the Premises, maintain, or permit to be maintained, a nuisance thereon, or use, or permit the Premises to be used, in an unlawful manner.

XXX. NOISE. The Tenant agrees to abide by any and all local, county, and state noise ordinances.

XXXI. COMPLIANCE WITH LAW. For the entire duration of the Lease Term, the Tenant agrees to comply with any present and future laws, ordinances, orders, rules, regulations, and requirements of the federal, state, county, city, and municipal governments or any of their departments, bureaus, boards, commissions, and officials thereof with respect to the Premises, or the use or occupancy thereof, whether said compliance shall be ordered or directed to or against the Tenant, the Landlord, or both.

XXXII. DISPUTES. If a dispute arises during or after the Lease Term between the Landlord and The Tenant, they shall agree to hold negotiations amongst themselves in "good faith" before any litigation.

XXXIII. SURRENDER OF PREMISES. The Tenant has surrendered the Premises when (a) the move-out date has passed and no persons are living in the Premises within the Landlord's reasonable judgment, or (b) access to the Premises has been turned to Landlord, whichever of (a) or (b) comes first. Upon the expiration of the Lease Term, the Tenant shall surrender the Premises in better or equal condition as it was at the commencement of this Agreement, albeit with reasonable use, wear-and-tear, and damages caused by the natural elements excepted.

XXXIV. WAIVER. The Landlord's waiver of a breach of any covenant or duty imposed on the Tenant under this Agreement shall not constitute, or be construed as, a waiver of a breach of any other covenant or duty imposed on the Tenant, or of any subsequent breach of the same covenant or duty. No provision, covenant, or clause of this Agreement shall be considered waived unless such a waiver is expressed in writing as a formal amendment to this Agreement and executed by the Tenant and Landlord.

XXXV. EQUAL OPPORTUNITY. The Landlord shall make reasonable accommodations in rules, policies, practices, and services under this Agreement for Tenant with a proven record of a physical or mental "handicap" as defined in 42 U.S.C.A. §§ 3604-3607 ("Handicaps"), provided such accommodations are reasonably within the Landlord's financial and practical means. The Landlord may issue consent to the Tenant to make reasonable modifications to the Premises, at the Tenant's expense, to afford the Tenant or his/her Occupant(s) with handicaps, the full enjoyment of the Premises. Any handicaps of the Tenant or Occupant(s) should be disclosed and presented to the Landlord, in writing, in order to seek the most appropriate route for providing any accommodations to the Premises. Landlord shall not discriminate against the Tenant with handicaps during the course of the Lease Term or in the rental application process. Further, the Landlord shall not discriminate against the Tenant during the Lease Term based on race, color, national origin, religion, sex, familial status, or any other status protected by law.

XXXV.I. HAZARDOUS MATERIALS. The Tenant agrees not to possess any type of personal property that could be considered a fire hazard on the Premises, such as a substance with highly flammable or explosive characteristics. Items prohibited from being brought into the Premises, includes but is not limited to, compressed gas, gasoline, fuel, propane, kerosene, motor oil, fireworks, or any other similar item or related substance in the form of a liquid, solid, or gas.

XXXVII. INDEMNIFICATION. The Landlord shall not be liable for any damage or injury to the Tenant, any Guest(s), or any other persons, nor shall Landlord be liable for any damage to any property

that occurs on the Premises, its common areas, or any part thereof, and the Tenant agrees to hold the Landlord harmless from any claims or damages unless caused solely by the Landlord's negligence.

XXXVIII. COVENANTS. The covenants and conditions herein contained shall apply to and bind the heirs, legal representatives, and assigns of the parties hereto, and all covenants are to be construed as conditions of this Agreement.

XXXIX. NOTICES. Any notice sent from the Landlord or Tenant to the other party shall be addressed to the underneath mailing addresses.

Landlord's Mailing Address and Contact Information:

Heryford Investments, LLC, ATTN. James/Yvonne
Post Office Box 1722, Murphys, California, 95247-1722
Phone Number: (209) 768-9866/209-768-9880
Email: jim@goldelectricinc.com or
yvonne@goldelectricinc.com

Tenant's(s') Mailing Address:

Dana Oneto – GOOD KARMA WELLNESS
Post Office Box 2662, Murphys, CA 95247
Phone Number: (209)768-5013
Email: dana@goodkarmawork.com

XL. PREMISES DEEMED UNINHABITABLE. If the Premises is deemed uninhabitable due to damages beyond reasonable repair, the Tenant shall be able to terminate this Agreement by written notice to the Landlord. If said damage was caused by negligence of the Tenant, Occupant(s), or their Guest(s), the Tenant shall be liable to the Landlord for all pertinent repairs and for the loss of income due to restoring the Premises back to a livable condition in addition to any other losses that can be proved by the Landlord.

XLI. SERVICE MEMBERS CIVIL RELIEF ACT. In the event the Tenant is currently, or hereafter becomes, a member of the United States Armed Forces on extended active duty and hereafter the Tenant receives permanent change of station (PCS) orders to depart from the area where the Premises is located, or is relieved from active duty, retires or separates from the military, is ordered into military housing, or receives deployment orders, then in any of these events, the Tenant may terminate this Agreement by giving thirty (30) days' written notice to the Landlord. The Tenant shall also furnish unto the Landlord a copy of the official orders, or a letter signed by the commanding officer of the Tenant, reflecting the change that warrants termination of this Agreement under this clause. Sierra HOPE shall pay prorated Rent for any days in which the Tenant occupies the Premises past the beginning of the Lease Term. Further, any Security Deposit shall be returned, deducted, or otherwise retained in accordance with Section XIV of this Agreement.

XLII. SIGNAGE: Tenant is responsible for any signage. Nothing will be affixed to the building's roof. Tenant may use the three-post structure on the property near Highway 4 for signage. Tenant will comply with any and all county ordinances or regulations for such signage.

XLIII. GOVERNING LAW. This Agreement shall be subject to and governed by the laws of the State of California.

XLIV. AGENCY RELATIONSHIP. Neither the Landlord nor the Tenant utilized the services of a real estate agency or a real estate agent to negotiate, draft, or execute this Agreement.

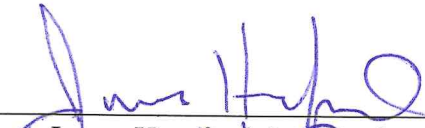
XLV. ADDITIONAL TERMS AND CONDITIONS. There are no further terms or conditions that will be added to this Agreement other than any attachments or addendums attached.

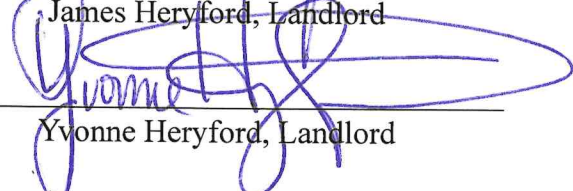
XLVI. OTHER DISCLOSURES. Landlord hereby informs and notifies the Tenant, who acknowledges the disclosures hereunder by executing this Agreement, of the following:

XLVII. ENTIRE AGREEMENT. This Agreement contains all the terms, conditions, covenants, and provisions agreed on by the Landlord and the Tenant and any other relevant party to this Agreement, relating to its subject matter, including any attachments or addendums. This Agreement replaces any and all previous discussions, understandings, and oral agreements. The Landlord and the Tenant agree to this Agreement and shall be bound until the end of the Lease Term.

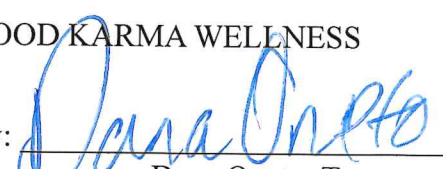
The parties have agreed and duly executed this Agreement on April 28, 2025.

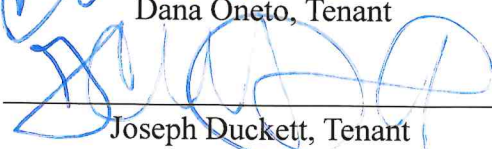
HERYFORD INVESTMENTS, LLC

By: 
James Heryford, Landlord

By: 
Yvonne Heryford, Landlord

GOOD KARMA WELLNESS

By: 
Dana Oneto, Tenant

By: 
Joseph Duckett, Tenant

ATTACHMENT 1

ESTIMATED COSTS

Base Rent	\$ 1,500.00
UPUD	86.52 approx.
Murphys Sanitary District	60.00 approx.
Property Taxes	285.62
Insurance	111.42
SUBTOTAL:	\$ 2,043.57
P.G. & E.	By Tenant
Propane	By Tenant

All the above costs with the exception of base rent are subject to change due to market conditions. Utilities, insurance and property taxes are subject to change and these costs will be passed on to Tenant.